

		owed does not constitute conversion.” (Kim v. Westmoore Partners, Inc. (2011) 201 Cal.App.4th 267, 284.) Similarly, “a mere contractual right of payment, without more, will not suffice.” (Farmers Ins. Exchange v. Zerlin (1997) 53 Cal.App.4th 445, 452.) Rather, “[a] cause of action for conversion of money can be stated only where a defendant interferes with the plaintiff’s possessory interest in a specific, identifiable sum, such as when a trustee or agent misappropriates the money entrusted to him.” (Kim v. Westmoore Partners, Inc. (2011) 201 Cal.App.4th 267, 284.) Here, Cross-Complainant alleges that “Indigo wrongfully retained funds that were earmarked for legitimate golf course operations but instead applied them to unauthorized accounts or duplicate payroll.” (FACC, ¶ 27.) Cross-Complainant further alleges that “Indigo exercised dominion and control over JP’s funds in a manner inconsistent with JP’s rights, causing damages.” (FACC, ¶ 28.) Based on these allegations, the demurrer to the sixth cause of action for conversion is OVERRULED. Cross-Defendant shall file an answer to the FACC within 20 days of notice of this ruling. Cross-Complainant to give notice. Case Management Conference
110	Johnson v Connie, LLC 2022-01248762	Motion to Consolidate -DENIED
111	Johnson v. Zelaya 2026-01541888	Motion to Consolidate - DENIED Plaintiff Randy R. Johnson moves to consolidate Johnson v. Connie, LLC, et al., Case No. 22-01248762 with Johnson v. Zelaya, et al., Case No. 26-01541888. When there are two or more actions that involve common questions of law or fact, a court may order them to be consolidated, or order a joint trial, or issue orders

necessary to avoid unnecessary costs or delay. (CCP § 1048(a).)

In the older action (Case No. 22-01248762), the sole cause of action at issue is for violation of Penal Code section 496. Plaintiff alleges that Connie, LLC and Old Newport Realty dba Genuine Property Management (“GPM”) received property that had been obtained in a manner constituting theft or extortion by demanding that Plaintiff pay monthly rent of \$2,450 starting May 1, 2021, despite the existence of a written lease starting on March 1, 2021 with a monthly rent of \$1,025. Plaintiff alleges that he paid the amount demanded out of duress and fear of eviction.

In the newer action (Case No. 26-01541888), Plaintiff asserts causes of action for violation of the Costa Mesa Tenant Protection Act (CMTPA), wrongful eviction, negligence, and unfair competition. Plaintiff alleges that the CMTPA prohibits termination of tenancy without just cause if a tenant has continuously and lawfully occupied a residential real property for 12 months, and that Defendants Lissa Starnes Zelaya, Heidi Berth Starnes Izzi, Robin Lynn Evans, Todd L. Starnes, and Connie, LLC (the “Zelaya Defendants”) did not have just cause to evict him. Thus, Plaintiff alleges that his December 2024 eviction was wrongful and the Zelaya Defendants violated the UCL by violating a municipal ordinance. Alternatively, Plaintiff alleges the Zelaya Defendants owed a duty of care not to obstruct Plaintiff’s quiet enjoyment of the property and breached that duty by failing to exercise due diligence in hiring property manager Genuine Property Management.

In the older action, trial will involve questions of whether Defendants Connie, LLC and GPM received property that had been obtained in any manner constituting theft or extortion with knowledge that the property was so obtained. The relevant rent payments were made between March 1, 2021 through March 1, 2022.

In the newer action, trial will involve issues concerning whether the Zelaya Defendants violated the CMPTA in

their attempts to recover the premises and have Plaintiff vacate as a tenant. Conduct underlying the alleged wrongful eviction began on March 1, 2022, when Zelaya Defendants began serving 60-day notices to terminate. Specifically, Plaintiff alleges that the Zelaya Defendants' notices violated the CMPTA by relying on a provision that did not apply, failing to identify the "owner," who must be a natural person, failing to notify Plaintiff that he may request proof that the intended occupant was an owner or related to the owner, failing to notify Plaintiff of his right to relocation assistance, and incorrectly calculating the fair market rent for Plaintiff's unit.

The two cases do not involve common questions of law or fact. The newer case will require evidence related to what was contained in the notices provided to Plaintiff and whether Plaintiff's unit was taken over by an owner or an occupant related to the owner such that the Zelaya Defendants had just cause. On the other hand, in the older case, Plaintiff must present evidence regarding Connie, LLC's and GPM's knowledge and criminal intent with regard to receipt of rent payments, not Plaintiff's removal as a tenant.

Plaintiff argues that evidence of the illegal rent increases will be relevant in the newer action to support the imposition of treble damages and punitive damages. Section 9-408 of the CMTPA provides that an owner who attempts to recover possession of a rental unit in material violation of this Article shall be liable to a tenant for treble damages and punitive damages "[u]pon a showing that the owner has acted willfully or with oppression, fraud, or malice[.]" However, evidence of the rent increases are not relevant to whether the Zelaya Defendants attempted to recover possession of a rental unit in material violation of the CMPTA. Plaintiff also argues that evidence regarding the subsequent eviction will be relevant to the illegal rent increase case because it can support a finding that Connie, LLC and GPM acted with criminal intent. However, evidence of the eviction has no relation to whether Connie, LLC and GPM acted with criminal intent over two years prior or whether they knowingly received money obtained in any manner constituting theft or extortion.

		In light of the above, the Court finds that the two actions do not involve common questions of law or fact. Thus, the motion to consolidate is DENIED. Moving party to give notice.
112	Nguyen v. Le 2024-01420730	Motions to Be Relieved as Counsel of Record - GRANTED The unopposed motions of attorney William Kersten of Kersten & Associates to be relieved as counsel for Defendants Lan Le and Tiffany Le are GRANTED. Service on the clients and on all other parties who have appeared in the case was proper and all required forms containing the requisite information were filed pursuant to California Rules of Court, rule 3.1362. The order will take effect once moving attorney files proof of service of the signed order (MC-053) on the clients. Moving attorney to give notice.
113	Nguyen v. Westminster Manor Apartment 2024-01442534	Motion for Summary Judgment and/or Adjudication - DENIED Defendant WESTMINSTER MANOR APARTMENT (hereinafter “Defendant”) moves for summary judgment on the grounds that the parties entered a GENERAL RELEASE OF CLAIMS AND WAIVER pursuant to Civil Code section 1542 on August 1, 2024 which extinguished all of Defendant’s obligations to Plaintiff, including, but not limited to water intrusion and damage, mold, gas leak, and any alleged injury, discomfort, or inconvenience, suffered by Plaintiff during her tenancy through the date of vacating the premises. The court notes that service of the motion may not have been proper. When utilizing electronic service, the proof of electronic service may be made in essentially the same manner as provided for service of papers by mail (CCP § 1013a), except that the declaration of service does not need to state that the person making the service is not a party to the action, and must state: